SOLOMON NDLOVU

And

OSFAEL MAZIBUKO

and

DENNIS NDLOVU

HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO 6 -7th, 25th July, 10th & 15th September, 10th & 29th October 2025, 30th April 2026.

Civil Trial -claim for delictual damages.

N. Mpofu, for the plaintiff.
S.Tsumele, for the 1st & 2nd defendants

MPOKISENG DUBE J: This again is one matter that brings to the fore the quality and value of pleadings. The plaintiff's claim against the 1st and 2nd defendants is couched as follows:

"The plaintiff's claims is for:-

a) Payment of the sum equivalent to US$ 102 800-00 valued as at the date of payment for the loss of his houses, 78 head of cattle and tractors.

b) Payment of damages for wrongful malicious prosecution and imprisonment in the sum of the equivalent of US$ 52 000 -00.

c) Contumelia and loss of his family and wife job and income pension benefits amounting to the equivalency of US$ 50 000-00 (sic)

d) The claim is being made jointly and severally against the Defendants the one paying the other to be absolved

e) Cost of suit."

Before dealing with the facts of the matter I find it apposite to comment on the plaintiff's manner of pleading. For example under the first head,

"a) Payment of the sum equivalent to US$ 102 800-00 valued as at the date of payment for the loss of his houses, 78 head of cattle and tractors."

Firstly to sustain a claim under the aquilian action (*Actio legis Acquilise*) under what head is this made? In the claim how many houses are being claimed what was the value of each of the houses? What was the value of each unit head of cattle, and how many tractors? These values cannot be successfully bundled together and clarity be achieved.

On the third claim;

"c) Contumelia and loss of his family and wife job and income pension benefits amounting to the equivalency of US$ 50 000-00" (sic)

The indignity of losing one's family and spousal comfort can not possibly be bundled together with the loss of employment and future income. The former falls under general damages while the latter falls under special damages. Loss of income can be quantified by way of payslips and financial statements while loss of family and spousal comfort cannot. I am convinced plaintiff's erstwhile counsel did not understand the distinction. Be that as it may I will deal with the facts of the matter.

Brief Facts

The plaintiff asserts that the defendants caused his arrest by maliciously filing a theft report against him, knowing that the allegations were false. As a result of this false report, the plaintiff was arrested, prosecuted, convicted, and sentenced to jail time. During his incarceration, the plaintiff claims that the defendants occupied Mjingwe Conservancy, which he and his partners had a lease to from ZimParks. The plaintiff alleges that the malicious report was made to push him out of the conservancy, leading to his losing his house, 78 cattle, a tractor, his job, income, and the chance for promotion and pension. He also claims that his marriage and family life fell apart because of his imprisonment.

On the one hand, the defendants pleaded as follows:

"*7. Ad para 2 to 6*

Plaintiff borrowed the motor vehicle from the 1st Defendant for use. There was never any payment agreed by the parties or received from the Plaintiff as the parties had not entered into any sale agreement.

8. Ad Para 7 to 12

Denied. 1st Defendant through the 2nd Defendant made a report to Makhado Police Station. The Police carried out their investigations and referred the matter to the Honourable Court which in turn tired the matter and convicted the Plaintiff. Defendants deny the averment that the report made was false and state that they had no control on the due process that saw the Plaintiff being tried and convicted. The Police and the courts carried out their constitutional duty without the influence of the Defendants, investigations were done and the Plaintiff was tired resulting in him being convicted. Plaintiff is put to the strictest proof thereof for his averments against the Defendants. .

9. Ad Para l3 to 14

This is denied. The agreement of sale produced at trial was never signed by the Defendants and they deny the signatures contained on the same. No payment was ever received for the said vehicle as the same was never subject of a sale agreement between Plaintiff and 1st Defendant. 1st Defendant borrowed Plaintiff his motor vehicle and Plaintiff proceeded to strip the same of the engine and other parts which he fitted on his own motor vehicle.

5 Ad Para l5 to17

This is denied. Defendant like any law-abiding citizens gave a testimony based on what had transpired which testimony the court made a determination on, there was no malice as alleged by the Plaintiff. It is denied that Defendants wanted to elbow out the Plaintiff from Mjingwe Conservancy, Plaintiff is put to the |strictest proof thereof for his averments."

The issues for trial were thus:

1. Whether or not Defendants maliciously caused the arrest, prosecution and incarceration of the Plaintiff?

2. Whether the Plaintiff suffered damages as a result of the arrest, prosecution and I ncarceration?

3. If so, whether the Defendants are liable for such damages and the quantum thereof.

Evidence Led By the Plaintiff.

When the trial opened the plaintiff testified in person and called two witnesses in support of his evidence namely Harold Zilawe and one Trynos Nkiwane.

The plaintiff testified to the effect that he was gainfully employed as a Captain in the Zimbabwe National Army deployed at Mbalabala School of Infantry (Now re-named Lookout Masuku Barracks). He had served in the national army since 1981, a total of 36 years as at the date of his testimony. Besides his rank as a Captain, he served as a Chaplin at the military school. At the time he and two of his colleagues were involved in a conservancy project at Mwenezi under the banner of Haigwari Safaris, which was on state- leased land. They were in the process of looking for an investor to make a capital investment into the project to make it commercially viable. That is when he met the 1st defendant who was brought to his office by one Colonel Dube as a potential investor. He testified further that he discussed the project with the 1st defendant who then requested to see the land on which the project was situate. They proceeded to the farm. 1st defendant saw the place and expressed interest. They agreed to meet the other directors which plaintiff introduced him to. After deliberations, 1st defendant then requested to be added to the CR14 form in the list of Directors. According to the plaintiff, 1st defendant also requested that 2nd defendant be added as a director. That was agreed upon and duly effected. 1st defendant promised to procure materials to fence off the land and provide management services, including payment of salaries to employees and providing them with rations to curb poaching. It was further agreed that the new directors would run hunting concessions for a period of 2 years. There was a further promise by the 1st defendant of a cash injection and provision of motor vehicles.

Plaintiff testified that in the series of meetings they held, they at one point met at the 1st defendant's house at Buena Vista. Thereat, he saw a non-runner Toyota motor vehicle and developed an interest in it. According to him, the vehicle had been unroadworthy for the past 3 years. It was deregistered, no tyres, no suspension, but had an engine. He proposed to purchase the vehicle and the 1st defendant agreed that they could exchange for one oxen. They then reduced the contract into writing and both signed in the presence of their respective witnesses. He produced a document which was subsequently admitted and Marked as Exhibit 1. A further document was produced and marked Exhibit 2 being the vehicle Registration Book.

Plaintiff testified further that he met his side of the bargain by instructing his wife to clear the beast with the police. 1st defendant instructed 2nd defendant to collect it and directed that after slaughter a hind quarter be delivered at his residence. That way plaintiff testified that he was sure that the beast was collected and slaughtered at 1st defendant's behest.

As for the vehicle, the plaintiff said he collected it himself at 1st defendant's Buena Vista residence. It was released unto him by one Mandla, a proxy of the 1st defendant. He was adamant that, to him, this was a sale contract as opposed to one of lease or borrowing.

He testified that he later stripped the vehicle as he failed to make it roadworthy. He affixed its usable parts to his other vehicle. He was shocked to be later arrested for theft of the said motor vehicle after about a year.

According to the plaintiff, what stood out during the investigation of the matter was that 1st defendant instructed one individual by the name of Arsenal Mutezo. The said individual is a state security agent. The said Mutezo procured 3 of his colleagues. In the police report made he states that 1st defendant was the complainant. However during his interrogations at police stations and during court appearances the Mutezo would be present. The police officers investigating the matter expressed fear of such individual and his colleagues. The police investigators, in the presence of the said Mutezo, took the docket of the matter to one Mr Ndou from the National Prosecuting Authority in Beitbridge, who made an endorsement to the effect that there was no case worthy prosecuting and effectively declined to prosecute him.

After 3 days he was however called back to the courts. According to him the Magistrate presiding refused to preside over the matter and sent it to the regional court from whence he appeared. Every time he appeared this Mutezo would be present and would approach the Public Prosecutors as well as the Magistrates. Plaintiff says he formulated an opinion that this Mutezo individual influenced the officials' decision making. His trial commenced, the 1st and 2nd defendants testified. It was under those circumstances that he was tried and convicted.

He was sentenced to 6 years imprisonment, of which 2 years were suspended on condition he restitutes the 1st defendant in the sum of USD2 500.00. He served 1 year 8 months.

While serving, he lost his job, his wife left him, his children fell out of school and became way ward, he paid lawyers to salvage his job to no avail, he owed some people and the debts ballooned, his workers were left without an income, and they sued him for their wages.

His 15-roomed house at Chipangayi was burnt down. His cottages were vandalised and materials looted. His tractor was damaged beyond repair. He lost his livestock. Basically, he was left with clothes on his back.

The plaintiff was exposed to quite some intense cross-examination. He was asked to give a breakdown of his total claim of USD204 800.00. He broke it down as follows:

"*My lost pension*	*USD 70 000*
The suffering of my wife and children	*USD 50 000*
Loss of my house	*USD 28 000*
Loss of my tractor	*USD 18 000*
Defamation	*USD 50 000*
My damaged House	*USD 50 000*

When one makes the math, this adds up to USD 266 000.00 as opposed to the USD 204 800 claimed on the summons.

What comes out of this answer is that in the summons of the plaintiff, defamation is not one of the heads of delict claimed. It is not pleaded at all. When it comes to the pain and suffering, the plaintiff testimony is to the effect that it is his wife and children who suffered. He can not make this claim on their behalf. What he ought to be testifying on is the effect the plight of his wife and children had on him. As for the loss of his assets he does not know how they were lost. His pleadings themselves do not create a nexus between his losses and the instrumentality of defendants' actions. It is also not clear how plaintiff lost his pensions? What was the charge he faced at his work why was his pension not paid out? From the pleadings and the testimony there is no link between the two.

During cross-examination one crucial exchange took place viz:

"Qstn: All these events,

1. *You are invited to the police station.*
2. *Matter is referred to the PP.*
3. *You are referred to court.*
4. *You are referred to the Regional Court.*

5. You are convicted and sentenced,

What influence did the 1st and 2nd Defendants have apart from laying a charge and testifying?

Ans: I was invited to the police due to the report of 1st Defendant.

Qtn: After that, did Defendants do anything up to the case being referred to the PP?

Ans: They attended all court proceedings, and they did nothing apart from that."

Qtn: When the PP referred the matter to trial did the Defendants do anything to influence that?

Ans: No"

From the above exchange, one does not get the overt act that the defendants did to secure plaintiff's conviction and ultimate sentence. From Plaintiff's own admission, they did nothing further than attend court and testify when required.

The plaintiff called next one Harold Zilawe. He testified to the effect that he is a Bishop in the Family of God Church to which plaintiff is a congregant. He used to visit the plaintiff while serving his prison term to give him spiritual support and to update him on the general welfare of his family. He witnessed the collapse of plaintiff's household. He did not know the finer details of the transaction between the plaintiff and the defendants.

Next to testify was Trynos Nkiwane. He stated that he once worked for the plaintiff, as a security guard at Haigwari Conservancy. He also knew the 2 Defendants. He was present when the 2nd defendant collected a beast from plaintiff's kraal. He does not know what the beast was for. He confirms, though, that it was slaughtered and consumed by the workers. He knew that the 1st defendant used to provide beasts for relish at the conservancy and nothing further.

That was the Plaintiff's case.

Defendants' Case

The defendants made an application for absolution from the instance which I dismissed and promised to give full reasons at the end of the trial as I hereby do. What exercised my mind then was the need to get clarity on the role played by this person referred to as Arsenal Mutezo.

In my view, ordinarily criminal reports are made at the police station, not at the State Security Agents' offices.

The 1st defendant opened his testimony and basically corroborated the evidence of the plaintiff as follows.

1. That he met the plaintiff as one of the directors of Haigwari Conservacy.
2. He joined the project as an investor.
3. He sought himself and his proxy 2nd defendant to be joined as co-directors.
4. There was a transaction about a motor vehicle.
5. He later reported it stolen.
6. He used one of his friends by the name of Mutezo a State Security Agent to follow up on the matter as he was working outside the country in South Africa.
7. He attended court and testified, leading to the plaintiff's conviction and sentence.

The 1st defendant's point of departure was that the vehicle transaction was a loan as opposed to a sale. That is why he did not effect change of ownership. He claims the vehicle was a runner. He denies signing the document admitted as Exhibit 1. He says his signature was forged. He says what prompted his report was the discovery of the vehicle mutilated at Makhado Business Centre without his consent. He made a report ordinarily and requested his friend Mutezo to follow up on the progress of the matter. He denies doing any overt act beyond the mere reporting and attendance in court when required. He avers that the rest he let the judicial officers and the courts to do their constitutionally mandated duties.

This witness was equally extensively cross examined. Counsel for the plaintiff however glossed over the role played by this Mutezo. No meaningful significance was attached to this individual's presence in influencing the outcome of the matter. As the record stands it seems he merely attended as a friend of the 1st defendant in his personal capacity. There is no allegation of any force or influence being brought to bear on the prosecution nor judicial officers.

There was however engagement with this witness on the change of directorship in the Haigwari Conservancy. 1st defendant argues that the intention was never to elbow out the plaintiff but rather to protect his investment. He directly engaged the Director ZimParks and held several meetings with the Minister then in charge. He insisted that all this was done to protect his investment and had nothing to do with the charge of theft he reported. He argued

that getting rid of plaintiff as a director would not have made a difference as there were other directors who remained on board. For that reason he denied ever formulating malice against the plaintiff.

Last to testify was the 2nd defendant. He stated that he knew the plaintiff through his commander and fellow veteran of the liberation struggle one Carlos Dube. This senior officer Dube, briefed him that plaintiff and his business partners were looking for an investor. He then contacted the 1st defendant, his friend who expressed interest in the venture. They visited the site and found chaos in form of lots of wild life roaming amongst illegal artisanal miners with poaching being rampant. He and the 1st defendant became keen in utilising and preserving the game with the involvement of relevant ministerial authorities. They thus joined the venture with him, the 2nd defendant being in charge of security. He states that indeed a beast was later acquired from the plaintiff but as a cash purchase for US$1000.00. He denied knowledge of the beast being traded for a motor vehicle. He averred that the motor vehicle was loaned. It was later stripped by plaintiff prompting a police report. He denied having signed on the exhibit purporting to be an agreement of sale for a motor vehicle. At the time of testifying this witness was said to have lost his sight due to diabetes related complications. He could not read exhibits presented to him. He also claimed to be illiterate and denied knowledge of being a director at Haigwari Conservancy.

The trail was thus concluded. Counsel prepared written submissions which are quite detailed. I however wish to revert back to the aspect pleadings filed by the plaintiff in this matter.

The Law on Pleadings

In the matter of *Medlog Zimbabwe (Pvt)Ltd v Cost Benefit Holdings (Pvt) Ltd SC24/18* Garwe JA (as he then was) discussed the important purpose of pleadings very extensively at page 10 of the cyclostyled judgment as follows:

> "In *Jowell v Bramwell-Jones* 1998 (1) SA 836 at 898 the court cited with approval the following remarks by the authors Jacob and Goldrein in their text *Pleadings: Principles and Practice* at p 8-9:
> "As the parties are adversaries, it is left to each of them to formulate his case in his own way, subject to the basic rules of pleadings … For the sake of certainty and finality, each party is bound by his own pleading and cannot be allowed to raise a different or fresh case without due amendment properly made. Each party thus knows the case he has to meet and cannot be taken by surprise at the trial. The court itself is as much

bound by the pleadings of the parties as they are themselves. It is not part of the duty or function of the court to enter upon any enquiry into the case before it other than to adjudicate upon the specific matters in dispute which the parties themselves have raised by their pleadings. Indeed, the court would be acting contrary to its own character and nature if it were to pronounce upon any claim or defence not made by the parties. To do so would be to enter the realm of speculation. … Moreover, in such event, the parties themselves, or at any rate one of them, might well feel aggrieved; for a decision given on a claim or defence not made, or raised by or against a party is equivalent to not hearing him at all and may thus be a denial of justice. The court does not provide its own terms of reference or conduct its own inquiry into the merits of the case but accepts and acts upon the terms of reference which the parties have chosen and specified in their pleadings. In the adversary system of litigation, therefore, it is the parties themselves who set the agenda for the trial by their pleadings and neither party can complain if the agenda is strictly adhered to." *(my emphasis)*

The authors Cilliers AC, Loots C and Nel HC in their text *Herbstein and Van Winsen, The Civil Practice of the High Courts of South Africa* (5th edn, Juta and Co. Ltd, Cape Town 2009) quote the following passage from Halsbury's *Laws of England,* 4th edn (Reissue), Vol 36 para 1 in which the function of pleadings is said to be,

"… to give a fair notice of the case which has to be met and to define the issues on which the court will have to adjudicate in order to determine the matters in dispute between the parties. It follows that the pleadings enable the parties to decide in advance of the trial what evidence will be needed. From the pleadings the appropriate method of trial can be determined. They also form a record which will be available if issues are sought to be litigated again. The matters in issue are determined by the state of pleadings at the close if they are not subsequently amended." (at page 558)"

The law on the value of pleadings from the fore going requires no further emphasis. At page 13 para 25.9 he went on to cite a paper; A Judge's View Point, The Role of Pleadings presented by Justices Rares of the Federal Court of Australia and Richard White of the Supreme Court of New South Wales at a judge's symposium, to the following effect:

"*Precise formulation of the applicant's rights in the initiating document is of central importance. This is because the pleading is the source from which many other consequences flow in the life of the litigation from filing at first instance through to final resolution in the High Court. The pleading will be used as the reference point for the seeking of particulars, the administering of interrogatories (which is virtually*

extinct), the obtaining of an order for discovery if the court is satisfied this is required, the issue of subpoenas, the calling of evidence, the relevance and admissibility of evidence, the closing arguments, the reasons for judgments and the availability of arguments on appeal. At all of these points, the following questions arise: "Was this issue pleaded?" and "How was this issue pleaded?" The question is not the loose one whether the argument could possibly be raised on the evidence at the conclusion of a hearing but whether the issue has been pleaded …"

The learned Justice of Appeal (as he then was) concluded as follows:

"*I associate myself entirely with the above remarks made by eminent jurists both in this jurisdiction and internationally. The position is therefore settled that pleadings serve the important purpose of clarifying or isolating the triable issues that separate the two litigants. It is on those issues that a defendant prepares for trial and that a court is called upon to make a determination. Therefore a party who pays little regard to its pleadings may well find itself in the difficult position of not being able to prove its stated cause of action against an opponent."*

The law on the value of carefully drafted pleadings can never be more aptly put. In the matter *of Keavney & Anor v Msabaleka Bus Services (Pvt) Ltd* 1996(1) ZLR 605 (S) Gubbay CJ et al held as follows:

"The purpose of pleadings is to define the issues and to enable the other party to know what case he has to meet."

In the present case, the plaintiff's erstwhile counsel failed to draw up his pleadings in a manner that concisely inform the defendants under which head his Aquilian action is premised. As a result, at trial he tells a very sad story which however does not tally with his pleadings. His erstwhile counsel did him a huge disfavour. As I have highlighted above his counsel could not make a distinction between general and special damages. There is no causal link between what is pleaded and the facts of the matter.

The Law on Malicious Arrest and Prosecution

In the case of *Mushambi v Zim Papers* HH110-11, it was stated that;

> "Malicious prosecution concerns misuse and abuse of the criminal process. It is not every prosecution that is concluded in favour of the accused person that necessarily leads to a successful claim for malicious prosecution. The subsequent acquittal of the plaintiff per se does not demonstrate malice on the part of the defendant. So much depends on the absence of a reasonable and probable cause, and the *animus iniuriandi* of the defendant in instigating, initiating or continuing the prosecution."

In the present matter, it is common cause that the 1st defendant laid the charge that became the basis of the prosecution and subsequent conviction. Ordinarily speaking, when a citizen attends at a police station and files his or her complaint, the police officers are not compelled to accept the report. They ought to apply their minds to the matter and, from an objective standpoint, decide whether the complaint is worthy of investigation or not. If they decide in the affirmative, they ought to deploy resources into investigating the matter and compile a docket.

Such a docket should be placed before a public prosecutor for a decision on whether to prosecute or not. Such a system is meant to have checks and balances at every level.

If the prosecutor decides to prosecute in the name of the State, then the matter is referred to court for placement of the accused on remand. That should also be a process informed by facts to establish a *prima facie* case. The court should apply its mind to the facts placed before it. This is more so if the matter is referred to the regional court being a more specialized court tasked to deal with more serious offences. If this court also accepts the matter and proceeds to trial after which it is satisfied that sufficient evidence has been led resulting in a conviction, then surely the reasonableness of the initial complaint made is confirmed. Each level and process that the matter went through acts as a filter for the reasonableness of the complaint.

If the plaintiff is exonerated by the Superior court, the initial report can only be said to have been malicious if the investigator is also sued for failure to apply his mind, the National Prosecuting Authority to have been negligent in placing the matter before the trial court.

I am of the respectful view that it is only when the defendants are proven to have made efforts beyond the mere laying of a complaint, for example, when they are proven to have hounded the state to secure a conviction against all odds, that a claim of malicious arrest and prosecution would be proven.

In *Baker v Christine* 1920 WLD 14, BRISTOWE J said the "test."

> "Is whether the defendant did more than tell the detective the facts and leave him to act on his own judgment". The principle that giving an honest statement of fact to the police on which the prosecution is then instituted is not "instigating" a prosecution was referred to with approval by PRICE J in *Madnitsky v Rosenberg* 1949 (1) PH] 5 at pp 15-16. See also *Waterhouse v Shields* 1924 CPD 155 at 160*; Prinsloo & Anor v Newman* 1975 (1) SA 481 (A).*"*

In the present case, before ownership was passed, the plaintiff stripped the motor vehicle in question. His basis is an agreement of sale, which is disputed. He could have fared better had he engaged and led forensic evidence from handwriting experts to prove that indeed the signatures affixed thereto belonged to the two defendants. Without such evidence, it remains the word of the plaintiff against that of the defendants. This court, being no handwriting expert, can only take the matter that far.

For the citation to be justified, plaintiff ought to have established and demonstrated against both defendants, four prerequisites;

a) The prosecution must have been instigated or set in motion by the defendants

b) The prosecution must have been concluded in the plaintiff's favour

c) There was no reasonable or probable cause for the prosecution

d) The prosecution was activated by malice

See *Nherera v Shah* SC51/19; *Econet Wireless (Pvt) Ltd v Sanangura* 2013 (1) ZR 401 (8);

I am not convinced that the involvement of one Mutezo by the 1st defendant had any adverse influence on the police, the prosecution, or the courts. If it did, it is not proven on the evidence before the court.

In the totality of the evidence adduced, I am not convinced that a delictual claim for malicious arrest and prosecution has been made out. Neither is a claim made out for patrimonial loss resulting from malicious prosecution and incarceration.

Disposition

In the foregoing, plaintiff's claim fails with costs.

Abel Law Chambers, plaintiff's legal practitioners
Dube-Banda and Nzarayapenga, defendants' legal practitioners